

日米租税条約 第22条（特典の制限）第1項【柱書】

Japan - USA Convention (2003) Art. 22(1) / 正文

ARTICLE 22

1. Except as otherwise provided in this Article, a resident of a Contracting State that derives income from the other Contracting State shall be entitled to all the benefits accorded to residents of a Contracting State for a taxable year by the provisions of other Articles of this Convention only if such resident satisfies any other specified conditions for the obtaining of such benefits and is either:

(a) an individual;

(b) a Contracting State, any political subdivision or local authority thereof, the Bank of Japan or the Federal Reserve Banks;

(c) a company, if:

(i) the principal class of its shares, and any disproportionate class of its

shares, is listed or registered on a recognized stock exchange specified in clause

(i) or (ii) of subparagraph (b) of paragraph 5 and is regularly traded on one or more recognized stock exchanges; or

(ii) at least 50 percent of each class of shares in the company is owned

directly or indirectly by five or fewer residents entitled to benefits under clause

(i), provided that, in the case of indirect ownership, each intermediate owner is a

person entitled to the benefits of this Convention under this paragraph;

(d) a person described in subparagraph (c) of paragraph 1 of Article 4;

31

(e) a pension fund, provided that as of the end of the prior taxable year more than